

9:30 AM

LINE: 8

25-CIV-02568

PATELCO CREDIT UNION VS. JOVANNA S. BADGER

PATELCO CREDIT UNION
JOVANNA S. BADGER

BARRY A. SMITH
PRO SE

DEFENDANT JOVANNA BADGER’S MOTION TO SET ASIDE DEFAULT AND DEFAULT JUDGMENT

TENTATIVE RULING:

For the following reasons, Jovanna S. Badger’s Motion to Vacate the Default and Default Judgment entered on December 26, 2025, is **DENIED**.

BACKGROUND

This is a debt-collection action arising from Defendant Jovanna S. Badger’s (“Defendant”) deposit account with Plaintiff credit union. The Complaint alleges that, in June and July 2024, Defendant withdrew, transferred, or otherwise spent funds exceeding the amount available in her account and thereafter failed to cure the resulting overdrafts.

The Complaint was filed on April 15, 2025. According to the proof of service and declaration of registered process server Romana Lazalde, Lazalde personally served Defendant on August 11, 2025, at Defendant’s residence at 1 Bolero Way, Daly City, California. Lazalde states that she spoke with a woman who confirmed that she was Jovanna Badger and, when Defendant refused to accept the summons and Complaint by hand, Lazalde dropped the documents through the bars of the security gate in front of Defendant. (Lazalde Decl., ¶¶ 2–4.)

Defendant moves to vacate the default and default judgment pursuant to Code of Civil Procedure sections 473, subdivision (d), and 473.5. She contends that she was not properly served and did not have actual notice of the action in time to defend it. The Court is not persuaded.

LEGAL STANDARD

Code of Civil Procedure section 473, subdivision (d), authorizes the Court to set aside a void judgment or order. Compliance with the statutory requirements for service of process is necessary to establish personal jurisdiction; accordingly, a default judgment entered against a defendant who was not served in the manner prescribed by statute is void. (*Ellard v. Conway* (2001) 94 Cal.App.4th 540, 544; *Sakaguchi v. Sakaguchi* (2009) 173 Cal.App.4th 852, 858.)

Code of Civil Procedure section 415.10 authorizes personal service by delivery of a copy of the summons and complaint to the person to be served. A person cannot defeat otherwise valid personal service merely by refusing to physically accept the documents. Where the person to be served is aware that service is being attempted but refuses to accept the papers, service may be accomplished by leaving the papers in the person's immediate presence or control. (*Trujillo v. Trujillo* (1945) 71 Cal.App.2d 257, 260; *Crescendo Corp. v. Shelved, Inc.* (1968) 267 Cal.App.2d 209, 212–213; see also *Khourie, Crew & Jaeger v. Sabek, Inc.* (1990) 220 Cal.App.3d 1009, 1013–1014.)

In addition, the return of a registered process server creates a presumption, affecting the burden of producing evidence, of the facts stated in the return. (Evid. Code, § 647.)

Section 473.5 provides a separate ground for discretionary relief where service of summons did not result in actual notice to the defendant in time to defend the action. To obtain relief, the defendant must establish that the lack of actual notice was not caused by avoidance of service or inexcusable neglect. (Code Civ. Proc., § 473.5, subds. (a)–(c); *Ellard, supra*, 94 Cal.App.4th at pp. 547–548.) “Actual notice” means genuine knowledge by the party litigant. (*Id.* at p. 547.)

DISCUSSION

THE JUDGMENT IS NOT VOID FOR LACK OF PROPER SERVICE

Defendant submits a declaration denying that she was properly served, together with photographs of the entrance gate to her residence. The photographs do not materially assist the Court in resolving the disputed service issue. They do not show meaningful damage to the gate, and they were taken substantially after the alleged service occurred.

Defendant's declaration, however, confirms several material circumstances described by the process server. Defendant acknowledges that she resides at 1 Bolero Way in Daly City, which is the address reflected on the proof of service. (Badger Decl., p. 2:1–2.) She further acknowledges that, on August 11, 2025, she encountered a woman at her residence and confirmed her identity to that woman. (*Id.* at p. 2:4, 12–13.) Defendant characterizes the woman as “yelling in a confrontational manner” but denies that legal papers were handed to her or left at the gate, door, or mailbox. (*Id.* at p. 2:19–21.)

Plaintiff submits the proof of service and Lazalde's declaration. Lazalde states that she went to Defendant's residence, stood at the security gate, knocked loudly, and spoke with a woman who confirmed that she was Jovanna Badger. (Lazalde Decl., ¶¶ 3–4.) Lazalde further states that Defendant refused to accept the documents by hand, using a profane expletive, after which Lazalde dropped the documents through the bars of the security gate directly in front of Defendant. (*Id.*, ¶ 4.)

The Court credits Lazalde's account. The registered process server's return carries the evidentiary presumption provided by Evidence Code section 647, and material aspects of Lazalde's account—including the address, date, encounter, and Defendant's confirmation of her identity—are corroborated by Defendant's own declaration.

The fact that Defendant refused to take the papers into her hands does not invalidate the service. California courts have long held that a person who knows personal service is being attempted cannot defeat service

simply by refusing to accept the documents. (*Trujillo, supra*, 71 Cal.App.2d at p. 260; *Crescendo Corp., supra*, 267 Cal.App.2d at pp. 212–213.) Here, the Court finds that Lazalde identified the person to be served, confirmed Defendant’s identity, attempted to deliver the summons and Complaint, and, when Defendant refused to accept them, left the documents in Defendant’s immediate presence through the security gate.

The Court therefore finds that Defendant was personally served on August 11, 2025, in compliance with Code of Civil Procedure section 415.10. Because service was valid, the Court obtained personal jurisdiction over Defendant, and the default judgment is not void for lack of service.

Accordingly, relief under Code of Civil Procedure section 473, subdivision (d), is **DENIED**.

DEFENDANT HAS NOT ESTABLISHED ENTITLEMENT TO RELIEF UNDER SECTION 473.5

Defendant alternatively seeks relief under Code of Civil Procedure section 473.5 on the ground that she lacked actual notice of the action in time to defend.

The Court is not persuaded.

As discussed above, Defendant admits that on August 11, 2025, she encountered the individual whom the Court finds was the registered process server and confirmed her identity. The Court credits Lazalde’s declaration that, after Defendant refused to accept the summons and Complaint, Lazalde dropped those documents directly in front of Defendant through the bars of Defendant’s security gate.

On this record, the Court finds that the August 11, 2025 service resulted in actual notice of the action. Defendant cannot establish a lack of actual notice under section 473.5 by refusing to accept documents that were personally presented to her and then left immediately in front of her.

Defendant’s declaration also states that she subsequently discovered legal papers relating to this action underneath the stairs inside her home. (Badger Decl., p. 2:23–24.) The declaration identifies the date of that discovery as “November 2024.” Because this action was not filed until April 15, 2025, that date is facially inconsistent with the chronology of the case. The Court therefore does not rely on the stated date of discovery in resolving the motion.

Even without relying on that allegation, the evidence concerning the August 11, 2025 encounter is sufficient. The Court finds that Defendant has not established that service failed to provide her with actual notice in time to defend the action or that any lack of notice was unrelated to her refusal to accept the documents.

Accordingly, Defendant has not established entitlement to discretionary relief under Code of Civil Procedure section 473.5.

DISPOSITION

Jovanna S. Badger’s Motion to Vacate the Default and Default Judgment entered on December 26, 2025, pursuant to Code of Civil Procedure sections 473, subdivision (d), and 473.5 is **DENIED**.

If the tentative ruling is uncontested, it shall become the order of the Court. Thereafter, Plaintiff, as the prevailing party, shall prepare and submit a proposed written order consistent with this ruling pursuant to California Rules of Court, rule 3.1312, and shall provide notice of the ruling as required by law. Please note that Local Rule 3.403(b)(iv) states in part “prevailing party on a tentative ruling is required to prepare a proposed order REPEATING VERBATIM the tentative ruling” (emphasis added). The order should be e-filed only, do not email or mail a hard copy to the Court.

Posted: 3:00 P.M.

